



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
DATE: 5-11-2020
BY: **MA. JILINA B. JUTILO**
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 39TH REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON APRIL
28, 2026

PRESENT:

Hon. Jane V. Plaza Municipal Vice- Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada SB Member
Hon. Harvey S. Manawatao SB Member
Hon. Tanie A. Quillano SB Member
Hon. Nilo S. Bigno SB Member
Hon. Rencio P. Valeroso SB Member
Hon. Elvie U. Ohao SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian ABC President
Hon. Jeff Anthony D. Beloria SK Federation President

ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Daniel A. Tejol SB Member
Hon. Michael C. Escuyos SB Member

ORDINANCE NO. 50
Series of 2026

**“AN ORDINANCE PROHIBITING ANY OBSTRUCTION ON PUBLIC ROADS AND OTHER SIMILAR PUBLIC
PLACES WITHIN THE TERRITORIAL JURISDICTION OF CARMEN, SURIGAO DEL SUR”**

Author: Hon. Harvey S. Manawatao

Enacted: All Members Present

EXPLANATORY NOTE

WHEREAS, in line with the President’s directive during the 2019 State of the Nation Address (SONA), all Local Officials are enjoined to exercise their powers essential to reclaim public roads which are being used for private ends and Memorandum Circular No. 2019-121 issued by the Department of the Interior and Local Government (DILG) on July 29, 2019 directs all Local Government Units to clear roads of illegal obstruction;

WHEREAS, DILG Memorandum Circular No. 2019-167 dated October 4, 2019 with the subject “Supplemental issuance to DILG Memorandum Circular No. 2019-121 re: Presidential Directives during the State of the Nation Address of the President to clear roads from illegal structures and obstruction,”

all Local Chief Executives are hereby directed to ensure the continuity of the undertaking by institutionalizing sustainability mechanisms for the maintenance of road clearing operations;

WHEREAS, the DILG issued a Memorandum Circular No. 2020-027 dated February 7, 2020 addressed to among others, City/Municipal Mayors, Punong Barangays, Head of Local Sanggunian (Vice- Mayor) and all others concerned with the subject "Continued Implementation of the Presidential Directive to Clear Roads of Illegal Obstruction (Road Clearing 2.0) and pursuant to Section 17 (b) of the Local Government Code of 1991 mandating all Provincial, City/Municipal and Barangay Governments to manage and maintain all roads within their territorial jurisdiction as a basic service facility, all LGUs are hereby directed to continue the implementation of the road clearing directive and ensure that their efforts to maintain the cleared roads are sustained;

WHEREAS, consistent with the declared policy of the State to safeguard life, health, property and public welfare under Republic Act No. 7160 otherwise known as the Local Government Code of 1991, Section 17 thereof empowers all Local Government Units to exercise such other powers and discharge other functions and responsibilities as are necessary, appropriate or incidental to efficient and effective provision of the basic services and facilities such as but not limited to the maintenance of roads and bridges and water supply;

WHEREAS, Section 447 (a) 5 (vi) of Republic Act No. 7160 otherwise known as the Local Government Code of 1991 provides that one of the powers, duties, functions of the Sangguniang Bayan is to regulate traffic on all streets and bridges, prohibit the putting of encroachments or obstacles thereon and when necessary, in the interest of public welfare, authorize the removal of encroachments and illegal construction in public places;

WHEREAS, in a subsequent Supplemental DILG Memorandum Circular No. 2024-053, the Department provides guidelines for the nationwide implementation of the Barangay Road clearing operations, assessment, validation and recognition under the Bagong Pilipinas Program;

WHEREAS, in order to solve the pressing problem on improper and unauthorized use of streets, sidewalks, alleys, bridges and other public places within the territorial jurisdiction of Carmen, Surigao del Sur and in order to complement the Presidential Directives of the President of the Republic of the Philippines, a corresponding legislation is necessary and needed in the respective Municipal level to achieve the sole objectives of both local and national government in re-claiming public streets from any obstructions;

WHEREAS, illegal parking and unauthorized structures along Barangay Roads obstruct the free flow of vehicular and pedestrian traffic, pose road hazards and impede access to public facilities;

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

Section 1. SHORT TITLE- This Ordinance shall be known as the ROAD CLEARING ORDINANCE OF CARMEN, SURIGAO DEL SUR.

Section 2. DECLARATION OF POLICY- This Ordinance declared as its policy to protect the people from harm and the roads from destruction and therefore, has to get rid of any impediment or obstruction in order to have a clean, clear, orderly and safe road both for motorists and non-motorists, promote peace and order, prevent damages or destruction of roads, untoward occurrences, accident or inconveniences to all and provide safe access or travel for all kinds of vehicles and the people.

Section 3. SCOPE- The provisions of this Ordinance covers all kinds of obstruction on public roads (national, barangays, alleys, sidewalks, municipal) and other public places within the territorial jurisdiction of Carmen, Surigao del Sur.

Section 4. DEFINITION OF TERMS- As used in this Ordinance, the following items shall have the corresponding meaning:

- 1) Road Obstruction- are structures, materials or activities within the road right of way that may impede the free flow and clear passage of motor vehicles or pedestrians or occupants of nearby structures.
- 2) Public Roads- all streets, roads (pave or unpaved) bridges, highways and thoroughfares constructed and maintained by the National Government and/or by the Local Government Unit including barangays provided that any road or sidewalk not falling under the definition but which upon the determination by the Municipality of Carmen, Surigao del Sur is deemed vital to pedestrian access or safety shall be considered a public road for the purposes of this ordinance.
- 3) Road Clearing- the removal of illegal or unauthorized road obstructions along the road right of way which encompasses the entire width of the road carriage way (including travel way for motor vehicles and road shoulders) and sidewalks.
- 4) Sidewalk- that portion of roadway assigned for the use by pedestrians, which must be free from all forms of physical obstructions or anything found on it, whether of value or not.
- 5) Streets- any open spaces established by eminent domain including the space above for access of vehicles and people for the continuous flow of vehicular traffic and pedestrian.
- 6) Thoroughfares- are roads or paths forming a route between two places.
- 7) Alleys- a narrow passageway between or behind buildings.
- 8) Pedestrian- a person walking along a road or in a developed area.
- 9) Crosswalk- a marked part of the road where pedestrians have right of way to cross.
- 10) Avenue- a broad road typically having trees at regular intervals along its side.
- 11) Vehicles- a thing used to transport people or goods especially on land.
- 12) Road Shoulders- is a strip of pavement outside the main traffic lane of a road.
- 13) Stalled Vehicle- one where the engine has suddenly stopped working causing the vehicle to a stop.

Section 5. PROHIBITED ACTS- It shall be prohibited and considered unlawful for any person or group of persons, entity or company to obstruct the free flow of people, goods and vehicles through the public road network within the territorial jurisdiction of Carmen, Surigao del Sur by using, utilizing or otherwise appropriating any roads, streets, sidewalks or pedestrian walkway, avenue, alley, bridge, park and other public places or portion thereof, for commercial or personal purposes for not more than twelve (12) hours. This prohibition includes all kinds of obstructions such as but not limited to:

(A) Vehicles parked along public roads, shoulders or sidewalks in any of the following places.

1. Within an intersection.
2. On a crosswalk.
3. Within six (6) meters of the intersection both ways.
4. Within six (6) meters from the edge of the roadway and nearest to public entrance to a school, barangay hall, commercial establishments, church, government centers, public market while open to the general public.
5. Within four (4) meters of the driveway entrance to a Fire Station, Police Station, Rural Health Unit and any Barangay Health Stations.
6. Within four (4) meters of a Fire Hydrant.
7. In front of a private driveway.
8. On the roadway at the side of any vehicles stopped or parked at the curb or shoulder of the street.
9. At any place where official signs have been erected or installed a "NO PARKING."
10. Opposite a parked vehicle (double parking).
11. On a bridge or within thirty (30) meters from both end of the approach of a bridge across a street.
12. On a street in such a manner as to obstruct or cause the obstruction of the smooth flow of traffic which includes but not limited to the following:
 - a. Parking diagonally on the roadway.
 - b. Driving so slowly that blocking the movement of the vehicle following behind.

- c. Loading and unloading of cargoes or passenger in such a manner that vehicle behind cannot pass through.
- d. Changing flat tire in the middle of the street or in any portion thereof which block the path of the passing or coming vehicle.
- e. Leaving stalled vehicle unattended in the roadway or portion thereof.
- f. Making repairs of mechanical defects in the middle or portion of the street.
- g. Double parking which obstructs the smooth flow of traffic.

(B) On other places of the street which are officially designated by the LGU as "NO PARKING" area:

- a. Vehicular and Tricycle Terminals except in areas designated by the concerned LGU.
- b. Vending sites for any kind of items.
- c. House encroachment that obstructs the road right of way, protruding gates, extended roofing, conduct of household activities, tents, except those being temporarily used for funerals and other similar activities.
- d. Store encroachment and indiscriminate signage and advertisement.
- e. Construction of any kind of humps or place any kind of protuberance in any public road without first securing a permit from the Office of the Municipal Mayor through the Office of the Municipal Engineer.
- f. Constructing barangay outposts, halls, markers and directories.
- g. Conduct of sports, sports facilities and other related activities.
- h. Hawking and peddling any goods, wares of any article of commerce in any public road or alley or portion thereof without first securing a permit from the Office of the Municipal Mayor and the barangay.
- i. Drying of palay, corn and other root crops including chopped woods.
- j. Obstructing and/or hazardous trees.
- k. Using and/or occupying any sidewalk or ally or portion thereof with any construction materials including sand, gravel, aggregates, steel bars, lumber, CHB and the like without securing a permit from the Barangay and/or the LGU.
- l. Debris, waste materials and other junked items.
- m. Other structures, materials or activities identified by the LGU and BLGU as obstructions through their road inventory.

Section 6. EXEMPTIONS- The following activities are considered exempted as obstruction from the coverage of this Ordinance.

- a. Night Market/Tiangge during Fiesta, Second Patronal Celebration, Christmas Season, Araw ng Carmen Celebration and other occasions as specified by the Barangay Local Government Unit (BLGU) concerned are exempted on the condition that necessary permits have been obtained by requesting an enactment of a Special Ordinance for Road Closure by the Sangguniang Bayan for that purpose. Provided, that the exempted activities shall only be for a definite period of time. Provided further, that the BLGU concerned shall closely maintain the peace and security during the duration of the activity.
- b. In cases of construction and repairs along Municipal and Barangay roads, equipment and materials used in such undertaking shall not be considered as obstructions under this Ordinance. Provided, that such undertaking has proper coordination with the appropriate Government Office and duly approved by the Municipal Mayor.
- c. In cases, where such obstruction are necessary incidents dictated by reasons of emergency to protect and save lives or properties from any calamity or public danger whether natural or man-made which shall include:
 - 1) Parked ambulance and public emergency vehicles.
 - 2) Checkpoints established and duly authorized by the LGU concerned, Philippine National Police (PNP), Armed Forces of the Philippines (AFP), Department of Environment and Natural Resources and other National Line Agencies.

- 3) Temporary Obstruction for Public Use such as:
 - a. Funeral Wake
 - b. Baptism, Birthdays and Anniversaries
 - c. Other private celebration

Provided, that the person and/or entity concerned shall obtained the necessary permit to the LGU concerned.

- d. Road Closure due to the utilization by the BLGU and LGU concerned.
- e. Other cases when expressly permitted or allowed by law or any Ordinance promulgated to meet a momentary necessity of order of public safety.

Section 7. PENALTIES- Any violation of the provisions of this Ordinance shall be penalized which shall accrue to the Municipal Treasurer as follows:

(A) Sidewalk Vendors:

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|---|---|---|
| 1 st Offense | - | A fine of Five Hundred Pesos (Php500.00) |
| 2 nd Offense | - | A fine of One Thousand Five Hundred Pesos (Php1,500.00) |
| 3 rd and Succeeding Offenses | - | A fine of Two Thousand Five Hundred Pesos (Php2,500.00) |

(B) Business Signage:

- | | | |
|--------------------------|---|--|
| 1 st Offense | - | A fine of Five Hundred Pesos (Php500.00) |
| 2 nd Offense | - | A fine of One Thousand Five Hundred Pesos and Dismantling of signage's |
| 3 rd Offenses | - | A fine of Two Thousand Five Hundred Pesos (Php2,500.00) and Dismantling of Signage's |
| 4 th Offenses | - | Suspension of Business Permit for one month if the violator is a Business Operator |

(C) Construction Materials:

- | | | |
|-------------------------|---|---|
| 1 st Offense | - | Written Warning with an order to clear and remove the construction materials within twenty-four (24) hours upon receipt of the same |
| 2 nd Offense | - | A fine of One Thousand Five Hundred Pesos (Php1,500.00) |
| 3 rd Offense | - | A fine of Two Thousand Five Hundred Pesos (Php2,500.00) |
| 4 th Offense | - | Confiscation of materials |

(D) Other Violators:

- | | | |
|-------------------------|---|---|
| 1 st Offense | - | A fine of Five Hundred Pesos (Php500.00) |
| 2 nd Offense | - | A fine of One Thousand Five Hundred Pesos (Php1,500.00) |
| 3 rd Offense | - | A fine of Two Thousand Five Hundred Pesos (Php2,500.00) |

Section 8. IMPLEMENTING STRATEGY-

- a. The Municipal Government shall regularly conduct road clearing of all roads within its territorial jurisdiction. The Municipal Engineering Office, the Municipal Disaster Risk Reduction and Management Office, the Municipal Environment and Natural Resources Office, Municipal Treasurer's Office and other lead government agencies designated by the Municipal Mayor to assist the barangays in the conduct of their regular road clearing operations.
- b. Local Operating Units of the PNP and the HFP are directed to provide the necessary support to LGU's in their implementation of road clearing.
- c. Road Clearing Operations in National Highway shall be undertaken in coordination with the National Government Agency concerned with the management of the Department of Public Works and Highways (DPWH) and the Department of Transportation (DOTr).
- d. No encroachment or obstruction which are part of any building or permanent structure may be removed without due notice to the owner thereof.
- e. Obstructing Electric Poles may only be relocated following proper arrangement with the operator/owner of the poles/post.
- f. In cases where the obstruction caused by the electric pole poses imminent danger, the LGU of Carmen, Surigao del Sur shall ensure that warning is provided to incoming motorists and pedestrians pending the pole's relocation.
- g. Obstructing and/or hazardous trees may be pruned or removed in accordance with the rules and regulation imposed by the DENR.
- h. Any permanent roofs or coverings either detached by the violator from the buildings existing on any public roads shall be removed.
- i. All obstruction along the Municipal and Barangay roads are hereby presumed or declared nuisance per se and as such are subject to summary abatement without a need of judicial proceedings.
- j. The Municipal Mayor is hereby authorized to donate the confiscated items to the PNP, BFP, MSWDO and other institutions, if necessary.

Section 9. GRIEVANCE MECHANISM STRATEGY- To resolve the complaints received and at the same time recommend policies, programs and projects that will harmonize the road clearing efforts of both the Municipal and the Barangay Government Units. The Local Government of Carmen, Surigao del Sur utilizes different platforms and avenues to address inquiries, complaints and setbacks of the public such as, but not limited to the following:

- a. **Electronic (Social Media, Text Hotlines, etc.)** to ascertain that the information regarding Road Clearing Program is widely disseminated. The LGU employs the use of social media like the LGU Facebook Page where residents could send their issues, concerned and/or queries for the action of the LGU. Road Clearing Hotline Number shall also be assigned which is under the custody of the Office of the Mayor assigned as Road Clearing Assistance Desk Officer.
- b. **Physical, if applicable-** to ensure that all possible queries, complaints, issues and concerns are properly attended to, the Road Clearing Assistance Desk Officer shall be responsible in receiving all complaints and feedbacks coordinate and refer the same to the members of the Municipal Road clearing Grievance and Feedback Committee for their resolution.

- c. **For Displaced Vendor-** vendors along the National and Barangay Roads affected by the clearing operations will be given priority to occupy stalls and commercial spaces in the Carmen Public Market. They shall also be given technical and financial assistance through livelihood development program through ACAP and TUPAD etc.
- d. **For Displaced Parked Vehicles-** the Local Government Unit (LGU) has a parking area at the Carmen Municipal Hall. Parking spaces shall be properly marked so that the parking shall be orderly.
- e. **For privately owned vehicles-** the owners are obliged to park their respective vehicles inside their privately owned parking areas.
- f. **For Obstructing Structures-** obstructing structures owned by the Barangay Local Government like streetlight posts, Barangay Outpost, among others shall be removed and relocated in the nearby areas in coordination with the Barangay Officials concerned. In cases, of road widening of any Municipal and Barangay Roads within the Local Government Unit's territorial jurisdiction in the near future wherein several government and private structures will be displaced, the Local Government Unit (LGU) concerned shall provide for the relocation. Due process of the law shall be done in case of demolition of private structures.

Section 10. CARMEN ROAD CLEARING TASK FORCE- A Task Force shall be created to aid in the implementation, enforcement and monitoring of this Ordinance, as well as to conduct educational information campaign, awareness and information dissemination programs that will inform the constituents.

The Task Force chaired by the Municipal Mayor shall have the following as members and may designate a Vice-Chair to serve as overall Coordinator.

- Municipal Engineer and Staff
- Municipal Disaster Risk Reduction and Management Officer and Staff
- Municipal Local Government Operations Officer (MLGOO)
- Municipal Planning and Development Coordinator
- Municipal Treasurer
- Municipal Environment and Natural Resources Officer and Staff
- Philippine National Police
- Bureau of Fire Protection
- SB Chairman, Committee on Infrastructure, Public Works, Housing and Land Utilization and Trade and Industry, Urban Planning and Development
- SB Chairman, Committee on Laws, Rules, Legal Matters and Human Rights
- SB Chairman, Committee on Peace and Order, Public Safety, Transportation and Public Utilities and Communication, Information, Technology, Power and Energy
- Municipal Information Officer (if any)
- Liga ng mga Barangay President
- Sangguniang Kabataan (SK) Federation President

Other members identified by the Chair or Vice-Chair (whose specific function in the Local Government Unit (LGU) and role may serve to effectively implement this Ordinance).

Section 11. IMPLEMENTING RULES AND REGULATIONS- Within ninety (90) days from the effectivity of this Ordinance, a Task Force created shall promulgate the necessary rules and regulations for the efficient and effective implementation of this Ordinance.

Section 12. INFORMATION, EDUCATION AND COMMUNICATIONS CAMPAIGN- Upon approval of this Ordinance, the Office of the Municipal Mayor shall create the CARMEN Municipal Road Clearing Task Force who will conduct massive information, education and communications campaign using any forms of platform.

All Punong Barangays within the territorial jurisdiction of Carmen, Surigao del Sur shall involve not just in the conduct of the operations, but in information, education, communication initiatives related to road clearing.

Section 13. REPEALING CLAUSE- All Ordinances contrary to or inconsistent with this Ordinance are hereby repealed, amended or modified accordingly.

Section 14. SEPARABILITY CLAUSE- If any part or provision of this Ordinance is declared invalid or unconstitutional, the same shall not affect the validity and effectivity of the other parts or provisions hereof.

Section 15. EFFECTIVITY CLAUSE- This Ordinance shall take effect twenty- one (21) days after its approval.

ENACTED this 28th day of April, 2026 at Carmen, Surigao del Sur.

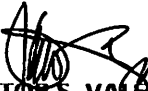
I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


JANE V. PLATA
Municipal Vice- Mayor/
Presiding Officer

APPROVED:


NESTOR S. VALEROSO
Municipal Mayor
5/11/2026